

[4] The collision caused the plaintiff and the bike attached to his shoes by the pedals to land on top of the hood. The car stopped for one or two seconds, causing the plaintiff and bike to slide onto the pavement. The motor vehicle then proceeded forward approximately 6 feet, pushing the plaintiff ahead, and then stopped.

[5] The plaintiff's left shoulder and left side of his head made contact with the hood of the vehicle and the pavement when he fell.

[6] The plaintiff ended up laying on the left side of the road in front of the vehicle.

[7] There were three teenagers present. Two helped the plaintiff to the curb and the third took the bike.

[8] The defendant exited the vehicle and came to the plaintiff on the side of the road. The plaintiff identified the defendant as the driver of the vehicle. She said words to the effect of, "he's O.K., he's O.K.". An older woman, who the plaintiff believed to be the mother of the defendant, came out of the passenger side of the vehicle and attempted to give kleenex to the plaintiff who was bleeding from his head, arm and leg. The defendant ushered the lady back into the car and left saying she was taking the lady to the hospital.

[9] The defendant proceeded south on Parliament Street. The defendant did not leave her name, address, driver's licence number, insurance certificate or licence number.

[10] One of the teenagers took the licence of the defendant's vehicles.

[11] One police officer arrived at the scene some time later. The plaintiff does not know who called the police officer. The officer spoke to the plaintiff and the teenager. After inquiring whether the plaintiff needed an ambulance, the officer left quickly driving south on Parliament in the direction the defendant had gone.

[12] The plaintiff saw no other persons at the accident site.

[13] The defendant testified. She was operating her vehicle east on Bloor Street intending to turn south on Parliament Street. She said she passed the plaintiff standing with his bike in the bike lane. She assumed he was waiting for a light or yield. She then said that before she completed passing him, he ran into her rear tire.

[14] She then said that she was stopped before completing her right turn to allow traffic proceeding west on the Danforth and turning left in front of her onto Parliament Street and that the plaintiff struck her while she was stopped.

[15] The defendant said the older woman was not her mother, but someone from her native country who was staying with her off and on for one week. She said there was also an older man who was an amputee in the car. She could not give the name of the woman. She did not call the man because she was a witness against him in an assault case and feared he would not support her evidence.

[16] The defendant testified she was on her way to Gerrard Street where the woman wanted to buy some clothing.

[17] The defendant said she exited her vehicle and asked the plaintiff if anything was wrong. He said he was all right and the accident was his mistake. She testified that she showed him her driver's licence and told him her insurance had expired. The defendant said she asked the plaintiff if he wanted her to call the police officer. The plaintiff declined, saying he was O.K.

[18] The defendant then left the scene.

[19] The defendant denies there were teenagers or anyone else at the scene.

[20] Some time later, the defendant received a call from the police officer at home.

[21] About whether there were any witnesses, the defendant was charged on three counts under the *Highway Traffic Act*. According to the records, the defendant's trial was at Old City Hall on January 12, 1995. The plaintiff testified that he, the police officer, the one teenager testified at the *Highway Traffic Act* trial.

[22] The defendant at first denied she had a trial, saying that she paid a fine for not having insurance.

[23] When confronted, she changed her evidence and said she might have had a trial but couldn't remember.

[24] The defendant at first denied that there was a teenage witness at her trial, but, again, when confronted, said she could not recall.

[25] Unfortunately, because of the passage of time, the police report with the name and address of the witnesses has been purged. The plaintiff does not have the name or address of the witnesses.

[26] I do find, however, that there were teenage witnesses to the accident, contrary to the evidence of the defendant.

LAW RE LIABILITY

[27] Section 193(1) of the *Highway Traffic Act* provides:

When loss or damage is sustained by any person by reason of a motor vehicle on a highway the onus of proof that the loss or damage did not arise through the negligence or improper conduct of the owner or driver of the motor vehicle is upon the owner or driver.

[28] Section 193(2) provides:

This section does not apply in cases of a collision between motor vehicles or to an action brought by a passenger in a motor vehicle in respect of any injuries sustained while a passenger.

[29] The plaintiff's case does not involve a collision of two vehicles, nor is it a claim by a passenger or a driver.

[30] I find the reverse onus contained in s. 193(1) applies.

[31] The plaintiff is only required to prove the collision occurred and that the collision caused the damages. The onus is on the defendant to disprove negligence.

CONCLUSION RE LIABILITY

[32] The onus is on the defendant to prove the accident was not caused by her negligence. I found the defendant's evidence to be unclear and evasive. She changed her evidence when convenient. The defendant's version of the accident is inconsistent with the injuries suffered by the plaintiff. On her version, she was stopped. The plaintiff had been stopped waiting for a light just prior to hitting the vehicle. In these circumstances, the plaintiff would have just started up when he hit the rear tire of the car. It is improbable he would have suffered the injuries he did in these circumstances.

[33] I find that the defendant has not discharged her onus and find her liable for the accident.

[34] I accept the plaintiff's version of the accident. I find there was no negligence by the plaintiff. The defendant is 100% responsible for damages to the plaintiff.

DAMAGES

[35] This action falls under Bill 164. The plaintiff is required to satisfy the "threshold". The threshold is defined at s. 267(1) as follows:

Subsection 1 does not relieve a person from liability for damages for non-pecuniary loss...if, as a result of the use or operation of the automobile, the injured person has . . . sustained . . . a serious impairment of an important physical function.

[36] The Courts have interpreted this threshold section liberally, given the fact that the *Insurance Act*, particularly under the Bill 164 regime, was very restrictive of an injured person's rights. Bill 164, which applied to cases arising from car accidents occurring from January 1, 1994 to October 31, 1996, is no longer the current insurance regime. Under Bill 164, there can be no claim for pecuniary loss of any kind.

[37] In *Marleau v. Falconer* (1997), O.J. #5415, O.C.J. General Division, Kerr J., at para. 5, p. 3 stated:

It is my view that it is crystal clear from the Statute that there is no temporal restriction in the amending legislation. If the infant plaintiff has suffered a serious disfigurement or a serious impairment of an important physical function in this case, of no matter what duration, the claim for damages crosses the threshold. The deductible under section 267.1(8) will apply to the majority of cases where the effects of the injury are short lived.

[38] The plaintiff is currently thirty-three years old.

[39] The plaintiff, after the accident, attended the Emergency Department of Toronto East General Hospital. He was examined, had a skull x-ray and was released, being diagnosed with a concussion and soft tissue injuries. Exhibit 1, Tab 3

[40] The plaintiff two days later attended upon his family physician, Dr. Marmina. Ex. 1, Tab 27. The plaintiff attended upon Dr. Marmina on eight occasions between August 26, 1994 and February 5, 1997. Dr. Marmina found the following injuries on examination:

1. swollen facies;
2. a stiff painful neck;
3. a stiff painful back;
4. abrasions to his left shoulder;
5. a contusion to his left hip;
6. abrasions and stiffness of left ankle;

7. abrasion to his left palm; and,
8. abrasion to right 1st finger ext. surface

[41] Because of major shoulder pain and stiffness and tingling into his left arm, the plaintiff was referred to an orthopaedic surgeon, Dr. Weiler. Dr. Weiler's report, dated February 24, 1997, is found at Ex. 1, Tab 22.

[42] Dr. Weiler diagnosed a rotator cuff tendonitis of the left shoulder. Dr. Weiler went on to state at pg. 2, p.7:

"Of significance, however, he has an overlap problem with cervical spine mechanical pain."

[43] Dr. Weiler stated that surgical intervention to affect shoulder problem would do little to alleviate his cervical spine problems. Dr. Weiler stated that if the plaintiff continued to be disabled in the future, consideration might need to be given to the clavicle in a rotator cuff decompression-type procedure. He estimated the success rate of this procedure would be in the region of 30% - 50%.

[44] The plaintiff was examined by Dr. Hugh Cameron, an orthopaedic surgeon, on behalf of the accident benefit insurer. Dr. Cameron came to the same conclusion as Dr. Weiler. Ex. 1, Tab 20.

[45] Prior to attending on the orthopaedic specialist, in an effort to rehabilitate himself, the plaintiff attended for physiotherapy treatments in the fall of 1994. He continued treatments from May through August, 1995 every three days and three attendances in September of 1995. The physiotherapy did little to help the shoulder and neck problem.

[46] The shoulder and neck problem prevents the plaintiff from lifting heavy weights and repetitive bending.

[47] Prior to the accident, the plaintiff worked in the printing industry from part-time in high school until four years before the accident. The plaintiff worked in the tourism industry for a four-year period prior to the accident. The tourism job at its best paid \$17,000 per year, plus some expenses. When the plaintiff left the printing industry, he was earning \$50,000 with potential to increase his salary to \$100,000.

[48] At the time of the accident, the plaintiff was intending to return to the printing business and, in fact, was delivering a resumé to a prospective employer when he was struck by the vehicle.

[49] In the printing business, the plaintiff is required to feed a printer lifting weights up to sixty pounds, as well as bending repetitively. The plaintiff secured

a job at the same level as when he left the industry with Chase Lithographers Inc. on November 24, 1994. He worked there until January 10, 1995 when he was let go because he was physically unable to do the job. Ex. 1, Tab 16. The plaintiff testified he was unable to feed the printer at the speed required. I find that he was unable to do this job because of his injuries suffered in the motor vehicle accident.

[50] The plaintiff is presently employed as a Case Management Co-Ordinator for the Attorney General at a salary of \$36,000. This motor vehicle accident has had a significant impact on his earning capacity.

[51] All of the plaintiff's injuries resolved in due course except the shoulder and neck problem.

[52] The plaintiff currently suffers from constant stiffness and irritation along his collarbone, along the left shoulder and in the shoulder. This condition extends from his shoulder to his left ear and involves his neck. This condition is the same now as it was after the accident almost nine years ago.

[53] The plaintiff has elected for the time being to forgo surgery. If the conditions worsen as he ages, he will consider surgery. The surgery will consist of cutting through muscle, nerves, tendon and excising a portion of bone in his shoulder. This will require probably a year of rehabilitation. The estimate of success is 30% to 50%. I find the plaintiff's decision in this regard to be reasonable.

[54] The plaintiff's condition has limited his activities. Ordinary day-to-day work aggravates the pain in the shoulder. Shovelling snow, swimming by way of a crawl or butterfly stroke, or playing hockey all aggravate his condition. The only extracurricular activity the plaintiff now does is golf, although swinging the club causes tingling in his arm and hand which creates some discomfort.

[55] I find the plaintiff has satisfied the threshold requirement.

[56] I assess the plaintiff's General Damages at \$55,000. There is a \$50,000 limit in the simplified procedure. I accordingly find General Damages to be in the amount of \$50,000.

[57] There is a deductible from General Damages under Bill 164. The plaintiff has filed a statement from Rick Rotstein, C.A. citing inflation-adjusted Statutory Deductibles. The statement sets the amount of \$11,508 for 2002. The statement in the next column states the deductible to be \$11,773 for the year 2002. Stating the year to be 2002 is obviously a typo. I set off the sum of \$11,773 from the \$50,000 damage award as the statutory deductible. Judgment is granted to the plaintiff in the sum of \$48,227.

[58] I further award pre-judgment interest. Under Bill 164, pre-judgment interest runs from the date of the accident and I so order.

[59] The defendant was unrepresented. For this reason, a cost hearing is ordered. I request that counsel for the plaintiff contact the Trial Co-Ordinator to fix a time and place for the cost hearing to be held before April 4. I further direct that when this information has been received, plaintiff's counsel so notify the defendant.

CAPUTO J.

RELEASED: 20030305

COURT FILE NO: CU-109203 SR
DATE: 20030305

ONTARIO
SUPERIOR COURT OF JUSTICE

B E T W E E N:

ERIC BARNISKE

Plaintiff

- and -

ELSA MOHAMED

Defendant

J U D G M E N T

CAPUTO J.

RELEASED: 20030305